

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

September 09, 2026

10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	The Retail Property Trust vs. Burning Mouth, LLC 24-01430383	1. Demurrer to Cross-Complaint 2. Motion to Strike Portions of Cross-Complaint Plaintiff/Cross-Defendant The Retail Property Trust seeks an order sustaining the Second Amended Cross-Complaint filed by Defendants/Cross Complainants John Kang and Kye Kim, on the following grounds: 1. The 1st c/a fails to state facts sufficient to constitute a cause of action for breach of contract (CCP§ 430.10(e)); 2. The 1st c/a is uncertain (CCP§430.10(f)). 3.The 2nd c/a fails to state facts sufficient to constitute a cause of action for fraud (CCP§430.10(e)); 4. The 2nd c/a is uncertain (CCP§430.10(f))

	5. The 3rd c/a fails to allege facts sufficient to constitute a cause of action for negligence (CCP§430.10(e)). 6. The 3rd c/a is uncertain (CCP§430.10(f)) Demurrer is overruled as to the 1st and 3rd causes of action. CCP§430.41(b). Demurrer is sustained without leave to amend as to the 2nd cause of action for fraud based on failure to state facts sufficient to constitute a cause of action. The elements of fraud, which give rise to the tort action for deceit, are (1) misrepresentation (false representation, concealment, or nondisclosure), (2) knowledge of falsity (or “scienter”), (3) intent to defraud (i.e., to induce reliance), (4) justifiable reliance, and (5) resulting damage. In this state, fraud must be pled specifically; general and conclusory allegations do not suffice. The policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. This particularity requirement necessitates pleading facts that show how, when, where, to whom, and by what means the representations were tendered. A plaintiff's burden in asserting a fraud claim against a corporate employer is even greater. In such a case, the plaintiff must allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. [Lazar v. Superior Court (1996) 12 Cal.4th 631, 632.] Here, the fraud cause of action is based on two discrete matters: 1) concealing from the lease negotiations the fact that a portion of the mall would be closing and 2) promising in the lease negotiations that tenants could sell donuts and then not allow them to do so. Cross-Complainants now pleads an inability to name representatives, agents, employees due to lack of
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		discovery responses. (SAXC¶13). They also plead approximately ten (10) named agents may have been involved. (See SAXC¶15.) This does not suffice. The fraud allegations arise from the lease negotiations. What was said and not said. Cross-Complainants, or their agents, were privy to those communications or lack thereof. As such, they should be in a position to provide the required level of specificity necessary to support the concealment claim and false promise claim. They fail to do so. To the extent the Motion to Strike punitive damages language is not rendered moot by this ruling, it is GRANTED without leave to amend. Cross-Defendant to give notice and file an answer to the SAXC within 15 days.
102	Abelardo Gutierrez vs. HOAG Memorial Hospital Presbyterian 25-01509741	1. Demurrer to First Amended Complaint 2. Motion to Strike Portions Of First Amended Complaint 3. Case Management Conference Demurrer Defendant, Hoag Memorial Hospital Presbyterian (“Defendant”), demurs to the first cause of action for harassment and third cause of action for retaliation of Plaintiff, Hector Abelardo Gutierrez’s First Amended Complaint. The demurrer is OVERRULED. Timeliness Plaintiff contends that the demurrer and motion to strike were not timely filed because Defendant’s counsel’s declaration in support of a 30-day extension does not establish a reasonable and good-faith effort to meet and confer.

		The Court finds that the scheduling of a telephonic conference and subsequent inability to meet and confer due to Defendant's counsel's illness sufficiently shows a good-faith attempt to meet and confer was made and explains the reasons why the parties could not meet and confer such that the demurrer. First Cause of Action for Harassment in Violation of Harassment in Violation of Government Code section 12940 et seq. Defendant contends that Plaintiff's first cause of action for harassment fails because Plaintiff fails to properly allege any actionable harassment directed at him or others based on his protected characteristics. To establish a prima facie case of harassment, Plaintiff must show (1) he belongs to a protected class; (2) he was subject to unwelcome harassment; (3) the harassment was based on his protected classification; (4) the harassment was sufficiently severe or pervasive enough so as to alter the conditions of his employment; and (5) respondeat superior. (Guthrey v. State of Cal. (1998) 63 Cal.App.4th 1108, 1122.) "To be sufficiently pervasive harassment, the acts complained of cannot be isolated or trivial. Rather there must be a pattern of harassment of a routine or generalized nature." (Ibid.) "The working environment must be evaluated in light of the totality of the circumstances: '[W]hether an environment is "hostile" or "abusive" can be determined only by looking at the circumstances. These may include the frequency of the discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee's work performance.' [Citation.]" (Miller v. Department of Corrections (2005) 36 Cal.4th 446, 462.) Objective severity is judged from the perspective of a reasonable person in the plaintiff's position. (Ibid.) Government Code section 12940(j)(1) prohibits an employer from harassing an employee on the basis of
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	“race, . . . , color, . . . , physical disability, mental disability, medical condition, . . . sex, gender,” The first cause of action alleges that Defendant is required “to refrain from harassing, or creating, or maintaining a hostile work environment against an employee based upon the employee’s disability and/or medical condition, real or perceived, use of medical leave, and engagement in protected activities of reporting hostile working environment,” (FAC, ¶ 42.) It also alleges that Hoag violated the FEHA by “creating a hostile work environment and harassing Plaintiff because of Plaintiff’s disability and/or medical condition, real or perceived, use of medical leave, engagement in protected activities reporting hostile working environment, and/or some combination of these protected characteristic,” (FAC, ¶ 44.) With regard to harassment directed towards Plaintiff himself, the Complaint alleges that in or about September 2023, Plaintiff took a two-week stress leave due to the hostile work environment he was enduring, that this mental health condition impaired Plaintiff’s major life activity of working, and that when he returned in September 2023 from stress leave, he was subjected to “repeated, humiliating comments” from Aaron Gonzalez. (FAC, ¶¶ 23, 28.) More specifically, Plaintiff alleges that prior to going medical leave in September 2023, “Plaintiff experienced severe episodes of stress and mental health issues as a direct and proximate result of the hostile work environment created by the Employer Defendant’s management. This condition impaired and limited Plaintiff’s ability to perform the major life activity of working and therefore constituted a disability.” (FAC, ¶ 28.) Plaintiff alleges that Gonzales mocked Plaintiff on at least 20 occasions between September 2023 and May 2024, on the basis of Plaintiff’s actual or perceived disability and medical condition with statements such as ‘How is your anus?’ ‘How is your bonghole?’ and “How is your sphincter?” (FAC, ¶ 28.) It is alleged that Plaintiff believed “these mocking and offensive comments were motivated by Plaintiff’s disability and medical condition, sex and gender,” as
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	these comments were made to Plaintiff only after he took medical leave, and Plaintiff interpreted these sexualized comments to mean that he was soft and hurt because he took time to attend to his mental health. (FAC, ¶ 28.) Contrary to Defendant’s assertions, Plaintiff does allege that he belongs to a protected class. And, Plaintiff alleges that Aaron Gonzalez’s mocking statements about Plaintiff’s “anus,” “bonghole,” and “sphincter,” were motivated by Plaintiff’s medical condition, sex and gender because they were made only after Plaintiff exercised his right to take a medical leave due to Plaintiff’s medical condition or disability, and that Plaintiff interpreted these sexualized comments to mean that he was soft and hurt because he took time off to attend to his own mental health. Based on the foregoing, the FAC contains allegations tying these comments to Plaintiff’s alleged physical and/or mental disability and/or medical condition. The allegations are sufficient to reasonably infer that the alleged mocking comments were based on Plaintiffs’ physical and/or mental disability and/or medical condition, i.e., that Gonzalez mocked Plaintiff because Plaintiff took stress/medical leave. On demurrer, a complaint must be liberally construed. (Code Civ. Proc. § 452; Stevens v. Superior Court (1999) 75 Cal. App. 4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal. 4th 962, 966-67.) Plaintiff’s admissions in responses to requests for admission that his stress leave in September 2023 “had nothing to do” with his “anus,” “bonghole,” and “sphincter,” merely establish that Plaintiff’s stress leave literally did not have anything to do with Plaintiff’s “anus,” “bonghole,” and “sphincter.” These admissions do not establish that the alleged comments were not based on Plaintiff’s physical and/or mental disability and/or medical condition in Plaintiff taking stress/medical leave.
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		Thus, the FAC sufficiently alleges harassment directed towards Plaintiff was based on a protected class. Although the alleged harassment against others is not based on the same alleged protected characteristics as Plaintiff, i.e., alleged physical and/or mental disability and/or medical condition, at the pleading stage, Plaintiff has sufficiently alleged harassment directed towards himself. Lastly, the FAC alleges that prior to going on medical leave, Plaintiff experienced severe episodes of stress and mental health issues as a direct and proximate result of the hostile work environment created by Defendant, as set forth above, which impaired his ability to work. (FAC, ¶¶ 28, 35-38.) “ ‘[H]arassment creates a hostile, offensive, oppressive, or intimidating work environment and deprives victims of their statutory right to work in a place free of discrimination when the harassing conduct sufficiently offends, humiliates, distresses, or intrudes upon its victim, so as to disrupt the victim's emotional tranquility in the workplace, affect the victim's ability to perform the job as usual, or otherwise interfere with and undermine the victim's personal sense of well-being.’ [Citations.]” (Ortiz v. Dameron Hospital Assn. (2019) 37 Cal.App.5th 568, 582.) Therefore, the FAC alleges that the alleged harassment was sufficiently severe or pervasive so as to alter the conditions of Plaintiff’s employment. Based on allegations in the FAC, the first cause of action sufficiently alleges a claim for harassment. The demurrer to the first cause of action is OVERRULED. Third Cause of Action for Retaliation in Violation of Labor Code § 1102.5, 1102.6 Defendant contends that Plaintiff’s third cause of action for retaliation under Labor Code sections 1102.5 and 1102.6 fails to state facts sufficient to constitute a cause of action as Plaintiff fails to point to a specific statute, rule, or regulation that may have been violated by the conduct he alleged disclosed, and the FAC fails to sufficiently allege that Plaintiff had reasonable cause to
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		believe that understaffing or alleged excessive force against patients violated a local, state, or federal rule or regulation. Labor Code section 1102.5 states, in part: (b) An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, or for providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties. (Labor Code § 1102.5(b), emphasis added.) “A report made by an employee of a government agency to their employer is a disclosure of information to a government or law enforcement agency pursuant to subdivisions (a) and (b).” (Lab. Code § 1102.5(e).) To establish a prima facie case of retaliation under Labor Code section 1102.5, plaintiff must show (1) she engaged in a protected activity, (2) her employer subjected her to an adverse employment action, and (3) a causal link between the two. (St. Myers v. Dignity Health (2019) 44 Cal.App.5th 301, 314.) “Section 1102.5 provides whistleblower protections to employees who disclose wrongdoing to authorities . . . “[S]ection 1102.5 prohibits an employer from retaliating against an employee for sharing information the employee ‘has reasonable cause to believe . . . discloses a violation of state or federal statute’ or of ‘a local, state, or federal rule or regulation’ with a government agency, with a person
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	with authority over the employee, or with another employee who has authority to investigate or correct the violation [Citation.] (Lawson v. PPG Architectural Finishes, Inc. (2022) 12 Cal.5th 703, 709 (“Lawson”).) “An employee injured by prohibited retaliation may file a private suit for damages. [Citations.]” (Ibid.) To come within the provisions of Section 1102.5, the activity disclosed by an employee must violate a federal or state law, rule or regulation. (Mueller v. County of Los Angeles (2009) 176 Cal.App.4th 809, 821-822.) The disclosure protected in Labor Code section 1102.5, “is one that is made ‘to a government or law enforcement agency, where the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation or noncompliance with a state or federal rule or regulation.’ [Citation.]” (Mize–Kurzman v. Marin Community College District (2012) 202 Cal.App.4th 832, 848, overruled on other grounds in People ex rel. Garcia-Brower v. Kolla’s, Inc. (2023) 14 Cal.5th 719.) Here, the FAC alleges that from approximately May 2022 through May 2024, Plaintiff made multiple complaints to his supervisors and management, including Aaron Gonzalez, Eric Rodriguez, Matt Sanders, and Corwin Bales, regarding serious violations of law and hospital policies; that Plaintiff reported on at least five to six occasions that security officers were engaging in improper conduct and using excessive force against patients; and that Plaintiff “reasonably believed that the use of excessive force against patients violated the federal law which obligates hospitals,” citing 42 U.S.C. section 290ii. (FAC, ¶¶ 19-20.) Therefore, the FAC alleges Plaintiff made disclosures to his supervisors and management and cites a specific statute that may have been violated by the conduct that Plaintiff allegedly disclosed. It is not required that a plaintiff expressly state in his disclosures that he believed his employer was violating or not complying with a specific state or federal law. (Ross v. County of Riverside (2019) 36 Cal.App.5th 580, 592-
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593 [“Although Ross did not expressly state in his disclosures that he believed the County was violating or not complying with a specific state or federal law, Labor Code section 1102.5, subdivision (b), does not require such an express statement”].) Labor Code section 1102.5(b), “requires only that an employee disclose information and that the employee reasonably believe the information discloses unlawful activity. [Citation.]” (Id. at p. 593.)

Based on the foregoing, at the pleading stage, Plaintiff alleges sufficient facts supporting whistleblowing as a matter of law.

Although Plaintiff’s allegations of chronic short-staffing and unsafe understaffing conditions (FAC, ¶ 22) do not amount to whistleblowing, the FAC alleges facts to support whistleblowing with regards to excessive force against patients. “[I]t is error for a trial court to sustain a demurrer when the plaintiff has stated a cause of action under any possible legal theory.” (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.)

The demurrer to the third cause of action is
OVERRULED.

Motion to Strike

Defendant, Hoag Memorial Hospital Presbyterian (“Defendant” or “Hoag”), moves to strike punitive damages allegations at paragraphs 38, 48, 57, 65, and 86, and the Prayer for Relief at paragraph 6 of Plaintiff’s First Amended Complaint. The Motion to Strike is DENIED.

Timeliness

The motion to strike is timely for the same reasons the demurrer is timely, as set forth above.

Merits

		Defendant contends that the FAC fails to allege any ultimate facts that he was subjected to malice, oppression, or fraud, and that Plaintiff fails to identify a sufficiently senior officer, director, or managing agent of Hoag who purportedly engaged in any of the alleged misconduct, which is required to state a claim for punitive damages against a corporate defendant such as Hoag under Civil Code section 3294(b). Defendant also asserts that leave to amend should be denied. As a threshold matter, Plaintiff correctly notes that the claim for punitive damages in the Prayer for Relief is made in paragraph 5, not paragraph 6. In order to state a prima facie claim for punitive damages, the complaint must allege facts of defendant's oppression, fraud, or malice, as stated in Civil Code section 3294. (Civil Code § 3294(a); <i>College Hospital Inc. v. Superior Court</i> (1994) 8 Cal. 4th 704, 721; <i>Turman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63.) "Malice" is defined as conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (Civil Code § 3294(c)(1).) "Oppression" is defined as despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (Civil Code § 3294(c)(2).) "In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by plaintiff. [Citations.] In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike, courts do not read allegations in isolation. [Citations.]" (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255.) "Further, even though certain language pleads ultimate facts or conclusions of law, such language when read in context with the facts alleged as to defendants' conduct may adequately plead
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	the evil motive requisite to recovery of punitive damages.” (Monge v. Superior Court (1986) 176 Cal.App.3d 503, 510.) “In addition to the requirement that the operative complaint set forth the elements as stated in section 3294, it must include specific factual allegations showing that the defendant’s conduct was oppressive, fraudulent, or malicious to support a claim for punitive damages. [Citation.]” (Today’s IV, Inc. v. Los Angeles Metropolitan Transportation Authority (2022) 83 Cal.App.5th 1137, 1193.) “Punitive damages may not be pleaded generally. [Citation.]” (Ibid.) Conclusory allegations that conduct was oppressive, fraudulent, or malicious are insufficient to support a claim for punitive damages. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1041-1042.) There must be factual assertions supporting the conclusion that a defendant acted with oppression, fraud, or malice. (Ibid.) Here, the FAC seeks punitive damages as to each of the four causes of action. (FAC, ¶¶ 48 [first cause of action], 57 [second cause of action], 65 [third cause of action], 86 [fourth cause of action].) The FAC alleges severe and/or pervasive harassment and a hostile work environment directed at Plaintiff and other co-workers which caused Plaintiff to take a two-week stress leave in September 2023; that in or about September 2023, Plaintiff complained to upper management, including Corwin Bales and Matt Sanders, about the harassment and hostile work environment, and that Defendant’s management escalated the hostility, and failed to prevent the harassment and hostile work environment perpetuated by supervisors Aaron Gonzalez and Eric Rodriguez. (FAC, ¶¶ 23-31.) It is also alleged that Plaintiff on at least five to six occasions, Plaintiff reported improper conduct and excessive force by security officer against patients, and that “management was dismissive, brushed off the
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		complaints, and failed to conduct any investigation or take remedial action.” (FAC, ¶¶ 19-21.) The allegations in the FAC include specific factual allegations showing that Defendant’s conduct was oppressive and, therefore, sufficiently allege facts to support a claim for punitive damages. In addition, the FAC sufficiently alleges that a managing agent authorized and/or ratified oppressive conduct in accordance with Civil Code section 3294(b). (FAC, ¶¶ 29-32, 34.) “When the defendant is a corporation, ‘[a]n award of punitive damages against a corporation . . . must rest on the malice of the corporation’s employees. [¶] But the law does not impute every employee’s malice to the corporation.’ [Citation.] Instead, the oppression, fraud, or malice must be perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent of the corporation. [Citation.] ‘ “[M]anaging agent” . . . include[s] only those corporate employees who exercise substantial independent authority and judgment in their corporate decision-making so that their decisions ultimately determine corporate policy.’ [Citation.]” (Wilson v. Southern California Edison Co. (2015) 234 Cal.App.4th 123, 164.) “ ‘[C]orporate policy’ is the general principles which guide a corporation, or rules intended to be followed consistently over time in corporate operations. A ‘managing agent’ is one with substantial authority over decisions that set these general principles and rules.” (Cruz v. HomeBase (2000) 83 Cal. App. 4th 160, 167-68.) Principal liability for punitive damages does not depend on employees’ managerial level, but on the extent to which they exercise substantial discretionary authority over decisions that ultimately determine corporate policy. (White v. Ultramar, Inc. (1999) 21 Cal.4th 563, 576-577.) “[S]upervisors who have broad discretionary powers and exercise substantial discretionary authority in the corporation could be managing agents. Conversely, supervisors who have no discretionary authority over decisions that ultimately determine corporate policy would not be considered
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		managing agents even though they may have the ability to hire or fire other employees. In order to demonstrate that an employee is a true managing agent under section 3294, subdivision (b), a plaintiff seeking punitive damages would have to show that the employee exercised substantial discretionary authority over significant aspects of a corporation's business. (Id. at p. 577.) For example, where a supervisor was responsible for managing eight stores and at least 65 employees and individual store managers reported to her and she reported to department heads in the corporation's retain management department, the California Supreme Court found that the supervisor exercised substantial discretionary authority over vital aspects of the defendant's business that included managing numerous stores on a daily basis and making significant decisions affecting both store and company policy. (Ibid.) "A company ratifies a managing agent's decision when it knows about and accepts the decision. [Citations.]" (Tilkey v. Allstate Insurance Co. (2020) 56 Cal.App.5th 521, 554.) The FAC alleges that Corwin Bales ("Bales") is Defendant's managing agent; that Bales is the Manager of Security for Hoag's entire hospital; that Bales exercised independent judgment in developing and implementing hospital security policies; that Bales exercised control over the entire security department and made significant decisions affecting safety throughout the hospital; and that Bales worked with outside law enforcement and fire agencies in emergencies. (FAC, ¶ 30.) Plaintiff also alleges that he complained in writing to Bales about harassment and a hostile work environment; that Bales and Hoag's management responded by escalating hostility rather than investigating or correcting it; that Bales failed to prevent the harassment and hostile work environment; and that Bales approved or ratified Plaintiff's termination. (FAC, ¶¶ 29, 31-32.) It is additionally alleged that Defendant's conduct was "undertaken, authorized, and/or ratified by Defendants' officers, directors and/or managing agents including Mr. Bales, . . . , who were authorized and empowered to make
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		decisions that reflect and/or create policy for Defendants.” (FAC, ¶ 34.) At the pleading stage, assuming the truth of the allegations, the allegations are sufficient to show that Bales is a managing agent. It is alleged that Bales developed and implemented hospital security policies and exercised control over the entire security department for Hoag, such that Bales exercised authority over one aspect over the general principles and rules which guide Hoag, i.e., corporate policy. These allegations are distinguishable from Cruz v. HomeBase (2000) 83 Cal. App. 4th 160, which Defendant contends is directly on point. In Cruz, the Court of Appeal found that a supervisor subordinate to a store manager in a single outlet of a multi-store chain who supervised only a few employees and had authority over only one narrow area of security for the single store’s multifaceted operations was not a managing agent. (Cruz v. HomeBase (2000) 83 Cal. App. 4th 160, 168.) Here, Bales is alleged to be the Manager of Security for Hoag’s entire hospital and exercised independent judgment in development and implementing hospital security policies, as well as exercised control over the entire security department and made significant decisions affecting safety throughout the hospital. The Court GRANTS Plaintiff’s request for judicial notice of Plaintiff’s responses to Defendant’s Requests for Admission, Set One. Defendant to file an Answer within 10 days. Plaintiff to give notice.
104	Barkley vs. H-Mart Supermarket 25-01461644	Motion for Leave to File Amended Complaint Plaintiff seeks an order allowing him to file an amending pleading. While it appears Plaintiff correctly served Defendant with this motion and a “Amendment to the Complaint”

	is attached to the motion, the same problems otherwise exist as with prior motions for leave. First, Plaintiff erroneously cites to the FRCP, which is not relevant or controlling in this state court proceeding. Second, the Motion does not comply with Cal. Rules of Court, Rule 3.1324. There is no accompanying declaration setting forth the effect of the amendment, explaining why the amendment is necessary and proper, or describing when the facts giving rise to the amended allegation were discovered and why the request was not made earlier. The proposed amendment appears to be Plaintiff raising his damages claim from \$400,000 to \$8M. As indicated above, no reasoning is set forth in a declaration, nor the motion itself. The Motion is therefore DENIED. As a reminder to Plaintiff, Pro Pers must abide by the Civ. Pro. Code and Cal. Rules of Court. (See Gamet v. Blanchard (2001) 91 Cal.App.4th 1276, 1284 [“pro per litigants are not entitled to special exemptions from the California Rules of Court or Code of Civil Procedure”].) That is, the fact that plaintiff is in pro per does not afford him special treatment. (Nwosu v. Uba (2004) 122 Cal.App.4th 1229, 1246-1247.) Moreover, the definition of a vexatious litigant is one who, “In any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.” (CCP§391(b)(3)) To the extent Plaintiff files another defective Motion for Leave to Amend, the Court may consider deeming Plaintiff a vexatious litigant herein. Clerk to give notice.
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105	Mutoujackson vs. City of Fullerton Police Department 25-01516622	1. Motion for Leave to Amend 2. Case Management Conference Plaintiff's Motion for Leave to File a First Amended Complaint is denied for the same reasons as set forth in this Court's 6/30/2026 ruling in 2025-01479364, RJN Ex. 5. As 2025-01479364 and 2025-01516622 appear to be identical, this Court sets an OSC re: why the 2025-01516622 matter should not be dismissed or why the Court should not strike it sua sponte without leave to amend for October 13, 2026, at 09:30 AM. Defendant to give notice.
106	Reynolds vs. Nieves 26-01542580	1. Motion to Set Aside/Vacate Default 2. Case Management Conference Defendant Jose Cabrera moves to set aside default entered on the Complaint of plaintiffs John Reynolds and Karen Reynolds. When an application for relief from default is made no more than six months after entry, is in proper form, and is accompanied by an attorney's sworn affidavit that the entry of default was a result of his or her mistake, inadvertence, surprise, or neglect, the court shall vacate the resulting default. (Code Civ. Proc., § 473(b).) Counsel for defendant states that, although he was aware that Defendant had been served, he erroneously believed that co-Defendant Malkiel Nieves would be providing an attorney to represent Defendant in this action. This belief was based on a written settlement agreement between Cabrera and Nieves in which Nieves agreed to defend and indemnify Cabrera from various claims, including the claims asserted in this action. (Sellers Decl. ¶¶7-8.) However, counsel recently reviewed the Register of Actions for this matter and discovered that Nieves did not comply with

		the settlement agreement and, consequently, default of Cabrera was entered on April 3, 2026. (Id. at ¶ 10.) The Court finds that the entry of default was due to counsel’s mistake, surprise, and inadvertence. The Motion was timely filed after notice of the default was received. Thus, the Motion to Set Aside Default is GRANTED. Moving party to separately file his proposed answer within 10 days of this order. Moving party to give notice.
107	Truong vs. Tran 21-01237262	Motion for Protective Order Plaintiffs Manh Van Truong and Meiji Truong (“Plaintiffs”) move for an order: 1. Prohibiting Defendant from knowingly publishing materially misleading, manipulated, deceptively edited, or knowingly false excerpts purporting to depict statements made by Plaintiffs concerning matters adjudicated in this action; 2. Prohibiting Defendant from targeting Plaintiffs’ immediate family members through knowingly false or materially misleading publications, or through harassing publications connected to the underlying litigation; 3. Prohibiting Defendant from knowingly soliciting, coordinating, or encouraging third parties to publish materially misleading, manipulated, or knowingly false content concerning Plaintiffs relating to matters adjudicated in this action; 4. Prohibiting Defendant from knowingly soliciting, coordinating, or encouraging third parties to publish harassing or materially misleading content targeting

		Plaintiffs’ immediate family members in connection with this litigation; 5. Prohibiting Defendant from harassing or targeting witnesses, counsel, or other individuals associated with this litigation through knowingly false or materially misleading publications concerning their participation in this case; 6. Prohibiting Defendant from knowingly publishing materially false factual statements accusing the Court, jurors, counsel, or witnesses of corruption, criminal conduct, or misconduct in connection with the proceedings in this action; 7. Awarding sanctions as the Court deems appropriate; and 8. Granting such other and further relief as the Court deems proper. Defendant Tien Dung Tran aka Daniel Tran (“Defendant”), proceeding in pro per, opposed the motion. The Motion is DENIED WITHOUT PREJUDICE. The Court is unable to reach the merits of this motion because (1) Plaintiffs failed to identify the legal authority pursuant to which Plaintiffs move the Court and (2) Plaintiffs failed to file any evidence in support of their motion. Plaintiffs reference exhibits in the moving papers but such exhibits are not filed with the Court. Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration.” (People v. Stanley (1995) 10 Cal.4th 764, 793.) Additionally, parties “may not enlist the court as their legal assistant to develop arguments they merely suggest.” (Paglia &
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		Associates Construction, Inc. v. Hamilton (2023) 98 Cal.App.5th 318, 327.) “It would be unfair for one side to loft an undeveloped legal idea, to rely on the court to work it out, and to leave the opposing party with nothing concrete to tackle in the briefing.” (Ibid. [citing Hewlett-Packard Co. v. Oracle Corp. (2021) 65 Cal.App.5th 506, 565 (failing to develop a reasoned argument supported by authority improperly forces the court to decode a bare assertion that the judgment, or part of it, is erroneous)].) The Motion is DENIED WITHOUT PREJUDICE. Plaintiffs to give notice.
108	Hillsboro Brown Capital, LLC vs. Taft 19-01087702	1) Motion to Expunge Lis Pendens 2) OSC Re: Entry of Judgment Defendant Jorge Burtin’s (“Burtin”) motion to expunge the lis pendens recorded by plaintiff Hillsboro Brown Capital (“HBC”), in Orange County, California on August 27, 2024 (Instrument No. 2024000221196) which relates to property located in Orange County in the City of Costa Mesa, Assessor’s Parcel Number (APN) 139-652-08 is GRANTED. Pursuant to Code Civ. Proc. §405.30, anyone with an interest in real property may move a court for an order expunging a lis pendens. A court “shall” grant a motion to expunge if either of the following conditions exists: 1. The pleading upon which the lis pendens is based does not contain a real property claim (Code Civ. Proc. §405.31); OR 2. The claimant has not established by a preponderance of the evidence the probable validity of the real property claim (Code Civ. Proc. §405.32).

		The party responsible for filing the lis pendens bears the burden of proof. (Amalgamated Bank v. Superior Court (2007) 149 Cal. App. 4th 1003, 1007; Shah v. McMahon (2007) 148 Cal. App. 4th 526, 529.) As a preliminary matter, HBC contends that the motion cited only to CCP §405.31 as grounds for relief. This contention is untrue, as the notice cites to §405.30 and both sections 405.31 and 405.32 are discussed in the memorandum. Neither party disputes that the operative Fourth Amended Complaint contained only one “real property” claim, which was the second cause of action for Breach of Written Contract – Specific Performance. This cause of action sought to enforce HBC’s purported right to acquire 25% of the ownership of property located at 1685 Toronto Way, Costa Mesa, CA. (4AC ¶ 104.) On June 18, 2025, this Court issued its Findings and Conclusions from Phase One of the Trial. (ROA 1598.) Within those Findings, this Court concluded that HBC did not properly exercise the Option for Toronto Way. (Ibid.) Thus, HBC cannot prevail on its second cause of action. In a case where the trial court has already substantively rejected the recording party’s claim (i.e., trial has concluded, but the time for appeal has not lapsed), the standard for expunging lis pendens is: “If the claimant loses at trial, the lis pendens must be expunged unless the trial court is willing to find that the probabilities are that its own decision will be reversed on appeal.” Mix v. Superior Court (2004) 124 Cal.App.4th 987, 996. Here, the Court has already ruled in favor of Defendant on the only “real property” cause of action. HBC has not provided any argument to support a finding that the probable outcome of an appeal from this Court’s ruling would be a reversal. As noted in Mix v. Superior Court, “it is improbable, but not impossible, that a trial court,
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		having decided a case against a claimant, might nevertheless forecast the reversal of its own decision on appeal.” Mix at 995-96 (emphasis added). This case does not fall within that exception. In connection with this motion, Defendant Burtin is awarded a total of \$9,222.95 (11.5 hrs at \$800/hr + \$22.95 costs) in reasonable attorneys’ fees and costs against Plaintiff HBC. (Code Civ. Proc., § 405.38.) This amount is to be paid to Burtin’s counsel within 30 days. Moving party to give notice.
109	Mendez vs. Progressive Insurance Company 25-01512485	1. Motion to Compel Arbitration 2. Joinder to Motion to Compel Arbitration 3. Order to Show Cause re: Dismissal for Failure to Proceed 4. Case Management Conference Defendant, Artisan and Truckers Casualty Company (erroneously sued as Progressive Insurance Company) (“Artisan”) moves for an order compelling arbitration of Plaintiff, Steven Mendez’s claim and staying this action pending completion of arbitration. The Motion to Compel Arbitration is GRANTED as to certain issues, as discussed below, the other claims against Artisan are stayed pending completion of arbitration, and the claims against co-Defendants, McNeil Tropp & Braun LLP and Jeff I. Braun are severed from the stay. Specifically, Artisan moves to compel arbitration of the issues of whether, and in what amount, Plaintiff is entitled to recover UIM damages and requests a stay as to Plaintiff’s other claims against Artisan pending completion of arbitration.

	Artisan has also filed arbitration after the instant motion to compel arbitration was filed; Plaintiff named Artisan and Truckers Casualty Company as Doe 1 and named Progressive Direct Insurance Company as Doe 2. Insurance Code section 11580.2(f) states, in part: “The policy or an endorsement added thereto [policy of bodily injury liability insurance covering liability arising out of the ownership, maintenance, or use of any motor vehicle] shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration.” (Ins. Code § 11580.2(a)(1), (f).) The beneficiaries of this section “include the insurer and the insured, as well as “the court themselves, which are thereby freed from entertaining such litigation. [Citation.]” (Mercury Ins. Group v. Superior Court (1998) 19 Cal.4th 332, 341-342.) “Connected to the uninsured motorist coverage law is the contractual arbitration law, which appears at Code of Civil Procedure section 1280 et seq. This law is implicated because the uninsured motorist coverage law requires an automobile liability insurance policy, which is a contract [citation], to provide for arbitration. (Id. at p. 342.) “Section 11580.2 requires insurers to provide coverage for bodily injury or wrongful death caused by uninsured or underinsured motorists. [Citation.] Subdivision (f) of section 11580.2 requires language in an automobile policy that provides for arbitration of disputes:” (Tornai v. CSAA Insurance Exchange (2023) 98 Cal.App.5th 974, 984.) Under Code of Civil Procedure section 1281.2, the court may order a petitioner and respondent to arbitrate a controversy if the court determines that an agreement to arbitrate the controversy exists and “[o]n petition of a party to an arbitration agreement alleging the
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	existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy.” (Code Civ. Proc. § 1281.2.) “ ‘ “California statutes create a ‘summary proceeding’ for resolving petitions or motions to compel arbitration. [Citation.] ‘The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.’ [Citation.]” [Citation.]’ [Citations.]” (Ramirez v. Charter Communications, Inc. (2024) 16 Cal.5th 478, 492.) “Federal and California law treat valid arbitration agreements like any other contract and favor their enforcement. [Citations.] The California Arbitration Act (Code Civ. Proc., § 1280 et seq.; CAA) expresses a ‘ “ ‘strong public policy in favor of arbitration as a speedy and relatively inexpensive means of dispute resolution.’ ” ’ [Citations.]” (Ibid.) “A written agreement to submit a controversy to arbitration is valid, enforceable, and irrevocable, ‘save upon such grounds as exist for the revocation of any contract.’ [Citation.] Unconscionability provides such grounds. [Citation.]” (Ibid.) Here, in accordance with Insurance Code section 11580.2(f), the subject Commercial Auto Policy that Artisan issued to ERA Transportation 608 (“Policy”) includes an Uninsured/Underinsured Motorist Coverage Endorsement which contains an arbitration provision as to “the legal liability of the operator or owner of an uninsured auto or underinsured auto; or the amount of damages sustained by the insured.” (Declaration of Nathaniel S.G. Braun (“Braun Decl.”)),
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¶ 2, Ex. 1, Policy.) The Policy lists Plaintiff, Steven Mendez, as a rated driver. (Id. at p. 2.)

The parties do not dispute that the Policy contains an arbitration provision applicable to the underinsured-motorist (“UIM”) issue, namely, whether Plaintiff is entitled to recover UIM benefits, and if so, the amount of those benefits.

There is also no dispute that Plaintiff and Artisan have a disagreement over the entitlement to UIM damages, as well as the amount of damages, thereby triggering the arbitration provision contained in both the Policy and Insurance Code section 11580.2(f). The Complaint alleges that the Policy provided UIM coverage for the allegations in the Complaint and underlying action, and that Artisan breached the insurance contract and the implied covenant of good faith and fair dealing when it refused to pay Plaintiff the benefits under the Policy. (Complaint, ¶¶ 9-10, 12.) The Complaint asserts six causes of action: (1) Breach of Insurance Contract; (2) Breach of the Implied Covenant of Good Faith and Fair Dealing; (3) California Insurance Code § 790.03; (4) Violation of Business & Professions Code sections 17200/17500 [Unfair Business Practices]; (5) Unjust Enrichment; and (6) Fraud. Based on the foregoing, there is no dispute that Plaintiff’s UIM claim is subject to arbitration as an agreement to arbitrate the issues of whether Plaintiff is entitled to UIM damages, and if so, the amount of damages exists.

Plaintiff argues that the motion should be denied because: (1) Artisan has failed to file any responsive pleading and is subject to default; (2) substantial portions of Plaintiff’s claims are not subject to arbitration under California law; (3) co-defendant Jeff I. Braun has no right to arbitrate and has filed a demurrer, creating inconsistent procedural postures; (4) staying the action would cause unnecessary delay and prejudice to Plaintiff; and (5) the motion was filed for an improper purpose.

		Artisan is not required to file any responsive pleading and is not subject to default. Code of Civil Procedure section 1281.7 states, “[a] petition pursuant to Section 1281.2 may be filed in lieu of filing an answer to a complaint.” Plaintiff also does not show that the motion was filed for an improper purpose. As to Plaintiff’s other claims, Artisan does not seek to arbitrate those other claims but seeks to stay those claims pending completion of arbitration. The issue is whether a stay is appropriate (1) as to Plaintiff’s other claims against Artisan, and (2) as to Plaintiff’s claims against co-Defendants, McNeil Tropp & Braun LLP and Jeff I. Braun (collectively, the “Law Firm Defendants”). Plaintiff’s Other Claims Against Artisan An insurer’s contractual right to arbitrate the value of a UIM claim does not prevent an insured from filing suit for bad faith. (McIsaac v. Foremost Ins. Co. Grand Rapids, Michigan (2021) 64 Cal.App.5th 418, 423.) Code of Civil Procedure section 1281.4, states in part: “If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc. § 1281.4.) It additionally states: “If the issue which is the controversy subject to arbitration is severable, the stay may be with respect to that issue only.” (Ibid.) “Any party to a judicial proceeding ‘is entitled to a stay of those proceedings whenever (1) the arbitration of a
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controversy has been ordered, and (2) that controversy is also an issue involved in the pending judicial action.’ [Citation.] ‘The purpose of the statutory stay is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved.’ [Citation.] ‘In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective.’ [Citation.]” (Heritage Provider Network, Inc. v. Superior Court (2008) 158 Cal.App.4th 1146, 1152.) “A controversy can be a single question of law or fact, and a stay shall be issued upon proper motion if the court has ordered arbitration of a controversy that is also an issue involved in an action or proceeding pending before it. [Citation.]” (Id. at pp. 1152-1153.) “Thus, a single overlapping issue is sufficient to require imposition of a stay.” (Id. at p. 1153.)

Here, the outcome of the arbitration, which will determine whether Plaintiff is entitled to UIM damages, and if so, the amount of damages, will dictate the breach of contract and bad faith claims which are premised upon Artisan’s failure to pay Plaintiff’s UIM claim under the Policy (first and second cause of action). So too will it dictate Plaintiff’s third cause of action for Violation of Insurance Code section 790.03 which alleges that Artisan violated Section 790.03 “[b]y denying coverage,” as well as Plaintiff’s fourth cause of action cause of action for Violation of Business and Professions Code section 17200/17500, fifth cause of action for unjust enrichment, and sixth cause of action for fraud which are premised, in whole or in part, upon Plaintiff’s entitlement to UIM damages and Artisan’s failure to pay/denial of coverage of Plaintiff’s UIM claim. (Complaint, ¶¶ 8-12 [facts applicable to all causes of action], 32 [first cause of action], 39-41 [second cause of action], 51 [third cause of action], 54-56 [fourth cause of action], 65 [fifth cause of action], 67, 74-75 [sixth cause of action].) As such, the issue of Plaintiff’s entitlement to UIM benefits is an overlapping issue in all of Plaintiff’s

	causes of action asserted in the Complaint. In turn, the continuation of proceedings in the trial court as to Plaintiff’s causes of action could render the arbitration proceeding ineffective. Therefore, a stay is justified as to all claims asserted in Plaintiff’s Complaint against Artisan. In addition, a trial court has an inherent power to stay proceedings. “Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency. [Citations.]” (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.) “ ‘[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.’ [Citation.]” (Oto L.L.C. v. Kho (2019) 8 Cal.5th 111, 141.) “As the court in Landis v. North American Co. (1936) 299 U.S. 248, 254, 57 S.Ct. 163, 81 L.ed.153 explained, ‘the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.’ ” (Ibid.) Plaintiff fails to demonstrate prejudice as a result of a delay from a stay on the causes of action asserted against Artisan. Lastly, Plaintiff’s claims against co-Defendants are not a basis to deny the motion to compel arbitration as to Plaintiff’s claims against Artisan, as the former claims may be severed from the stay, as discussed below. Based on the foregoing, the Court GRANTS Artisan’s motion to compel arbitration as to the issues of “the legal liability of the operator or owner of an uninsured auto or underinsured auto” and “the amount of damages sustained by the insured,” and to stay the action as to Artisan pending completion of arbitration. Plaintiff’s Claims Against Co-Defendants
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		The Law Firm Defendants do not oppose arbitration but contend that they should not be subject to stay of any proceedings as a result of co-Defendant Artisan’s motion to compel arbitration. As noted above, “[a] single overlapping question of law or fact may qualify as a ‘controversy’ sufficient to require imposition of stay. [Citations.]” However, “[i]f the issue which is the controversy subject to arbitration is severable,’ the court has the discretion to sever and stay proceedings on the arbitrable claims and permit any non-arbitrable issues to proceed in court. [Citations.] The party seeking severance under Code of Civil Procedure section 1281.4 must prove its claim is independent of the arbitrable matter. [Citations.]” (Mattson Technology, Inc. v. Applied Materials, Inc. (2023) 96 Cal.App.5th 1149, 1161.) Here, there is no dispute that the Law Firm Defendants have no contract or agreement with Plaintiff, that the Law Firm Defendants are not a party to any arbitration agreement with Plaintiff, and that the Law Firm Defendants are not a party to Policy and are not bound by Insurance Code Section 11580.2. Plaintiff acknowledges that Plaintiff’s claims against the Law Firm Defendants “are not founded in or intertwined with the insurance contract,” and that they are “independent tort and statutory claims based on Mr. Braun’s conduct.” (ROA 86, Plaintiff’s Opposition, Section B.) As such, the claims against the Law Firm Defendants are independent from the issues subject to arbitration, set forth above, and Plaintiff’s claims against the Law Firm Defendants should be severed such that they are not subject to the stay under Code of Civil Procedure section 1281.4. Artisan to give notice.
110	Moslehi vs. County of Orange 24-01428581	Motion for Sanctions Plaintiff Arash Moslehi (“Plaintiff”), proceeding in pro per, moves for an order dismissing and prohibiting

	Kimbal Tirey & St. John LLP from participating in this matter. There is no proof of service accompanying the motion. The motion is therefore denied for failure to comply with Code of Civil Procedure section 1005, which requires all moving papers to be served and filed at least 16 court days before the hearing. (Code Civ. Proc., §1005 (b).) In addition, a proof of service of the moving papers must be filed no later than five court days before the hearing. (Cal Rules of Court, rule 3.1300(c).) Even if the motion was properly served, Plaintiff has provided no memorandum of authorities to support the relief requested. (See Cal Rules of Court, rule 3.1113(a) (“The court may construe the absence of a memorandum as an admission that the motion . . . is not meritorious and cause for its denial . . .”).) Plaintiff also has not provided any citations to legal authorities that permit Plaintiff to move for the relief requested. Likewise, Plaintiff proffers no admissible evidence in support of his request. “Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration.” (People v. Stanley (1995) 10 Cal.4th 764, 793.) Additionally, parties “may not enlist the court as their legal assistant to develop arguments they merely suggest.” (Paglia & Associates Construction, Inc. v. Hamilton (2023) 98 Cal.App.5th 318, 327.) “It would be unfair for one side to loft an undeveloped legal idea, to rely on the court to work it out, and to leave the opposing party with nothing concrete to tackle in the briefing.” (Ibid. [citing Hewlett-Packard Co. v. Oracle Corp. (2021) 65 Cal.App.5th 506, 565 (failing to develop a reasoned argument supported by authority improperly forces the court to decode a bare assertion that the judgment, or part of it, is erroneous)].)
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		The Motion is DENIED. Plaintiff to give notice.
111	Quick Bridge Funding, LLC vs. Workhorse Cabinetry, LLC 26-01545535	1) Motion for Summary Judgment and/or Adjudication 2) Case Management Conference Plaintiff Quick Bridge Funding, LLC moves for summary judgment on its Complaint against Defendants Workhorse Cabinetry, LLC and Jeanette Carey. For the following reasons, the motion is GRANTED. A plaintiff moving for summary judgment “bears the burden of persuasion that ‘each element of’ the ‘cause of action’ in question has been ‘proved,’ and hence that ‘there is no defense’ thereto. [Citation.]” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c, subd. (p)(1).) “Once the plaintiff ... has met that burden, the burden shifts to the defendant ... to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The defendant ... may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.” (Code Civ. Proc. § 437c, subd. (p)(1).) The Complaint asserts causes of action for 1) breach of contract; and 2) breach of guaranty. The elements of breach of contract/guaranty are (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach.” (Miles v. Deutsche Bank National Trust Company (2015) 236 Cal.App.4th 394, 402.)

		Plaintiff establishes the existence of a contract, specifically, the Loan Agreement and Guaranty. (Otero Decl. ¶¶ 4-5, Exh. 1.) Plaintiff submits evidence that it performed its obligations under the contract. (Otero Decl., ¶ 9.) Plaintiff additionally submits evidence that Defendants breached the contract and guaranty. Specifically, Otero states that on 11/12/25, Defendants defaulted by failing to make the payment due. (Otero Decl., ¶ 6.) Based on Defendants' breach, the entire unpaid balance of \$39,977.41 became due and payable from Defendants to Quick Bridge. (Otero Decl., ¶ 6.) Defendants have failed to pay the amount due under the agreements. (Otero Decl., ¶ 7.) Plaintiff meets its burden as the moving party to produce admissible evidence on each element of its causes of action entitling it to summary judgment. (CCP § 437c(p)(1).) Defendants do not oppose the motion and thus do not establish the existence of any triable issues of material fact. As a result, the motion for summary judgment is granted. Plaintiff to give notice and to prepare a proposed judgment.
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